



### CHAPTER xxviii.

An Act to sanction and confirm the construction of works and to authorise the construction of additional works in relation to their water undertaking by the Corporation of Blackburn to amend and extend former Acts relating to the borough of Blackburn to confer further powers with respect to the supply of water to authorise the Corporation to borrow money and for other purposes.

A.D. 1911.

[2nd June 1911.]

**W**HEREAS the county borough of Blackburn (hereinafter called "the borough") is a municipal and county borough and the mayor aldermen and burgesses of the borough acting by the town council (hereinafter called "the Corporation") are the municipal and urban sanitary authority within the borough:

And whereas the Corporation are the owners of extensive waterworks and supply water within the borough and neighbourhood and for the purpose of enabling them to supply water more efficiently within their limits of supply it is expedient that the construction and completion of the works hereinafter described and already commenced by the Corporation on land belonging to them should be sanctioned and confirmed and that they should be authorised to make and maintain the additional works by this Act authorised and to stop up and extinguish all the rights of way over the footpaths referred to in this Act:

And whereas it is expedient that the time limited by the Blackburn Improvement Act 1877 as extended by the Blackburn Water Act 1885 and the Blackburn Corporation (Tramways &c.) Act 1898 for the construction of the Brennand Reservoir and the Whitendale Reservoir should be extended:



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A.D. 1911. And whereas it is expedient that the Corporation should be authorised to raise further money by borrowing :

And whereas plans and sections showing the lines situation and levels of the works by this Act authorised and also a book of reference containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of the lands required or which may be taken for the purposes of or under the powers of this Act were duly deposited with the clerk of the peace for the county of Lancaster and are in this Act respectively referred to as the deposited plans sections and book of reference :

And whereas estimates have been prepared by the Corporation for the purchase of land for and the execution of the various works by this Act authorised and for other purposes and such estimates are as follows :—

For and in connection with the construction of the Revidge Reservoir and the conduits and works connected therewith ten thousand five hundred pounds ;

For and in connection with the purchase of lands for and the construction of the Parsonage Reservoir and the conduits and works connected therewith sixty-five thousand pounds :

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas an absolute majority of the whole number of the council at a meeting held on the ninth day of November one thousand nine hundred and ten after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Blackburn Gazette a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate :

And whereas the said resolution was published twice in the Blackburn Gazette a newspaper published and circulating in the borough and has received the approval of the Local Government Board :



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And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the fifth day of February one thousand nine hundred and eleven being not less than fourteen days after the deposit of the Bill in Parliament: A.D. 1911.

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Blackburn Corporation Water Act 1911. Short title.

2. The following Acts and parts of Acts so far as the same are applicable to the purposes of and not varied by or inconsistent with this Act are incorporated with and form part of this Act (that is to say):— Incorporation of Acts.

(1) The Waterworks Clauses Act 1847 sections 1 to 15 18 to 34 and 85 to 93 inclusive and the Waterworks Clauses Act 1863 sections 1 to 11 inclusive:

(2) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

(3) The Railways Clauses Consolidation Act 1845 with respect to the temporary use of lands near the railway during the construction thereof but for the purposes only of constructing the works by this Act authorised and in the application of that Act to this Act the term "railway" shall mean the reservoirs and so much of the aqueducts conduits or lines of pipes and culverts as will not be constructed in a highway and the works immediately connected therewith by this Act authorised and the expression "centre of the railway" shall respectively mean the



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boundaries of the said reservoirs and the centre of so much of the said aqueducts conduits or lines of pipes and culverts as aforesaid.

Interpreta-  
tion.

3. In this Act unless the subject or context otherwise requires—

“The borough” means the municipal borough of Blackburn;

“The Corporation” means the mayor aldermen and burgesses (acting by the town council of the borough);

“The borough fund” and “the borough rate” mean respectively the borough fund and the borough rate of the borough;

“District fund” and “general district rate” mean respectively the general district fund and the general district rate of the borough;

“The Act of 1877” and “the Act of 1898” mean respectively the Blackburn Borough Gas Water and Extension Act 1877 and the Blackburn Corporation (Tramways &c.) Act 1898;

“The waterworks undertaking” means and includes the waterworks and the waterworks undertaking of the Corporation as existing at the passing of this Act and all waterworks in course of construction or which may hereafter be constructed under the powers of this Act;

“The waterworks revenue” means and includes the revenue arising from the waterworks undertaking.

Words to which meanings are assigned in enactments wholly or partially incorporated with this Act have in this Act the same respective meanings unless there be something in the subject or context repugnant to such construction.

Confirmation  
of construc-  
tion of works  
commenced  
by Corpora-  
tion.

4. Subject to the provisions of this Act the Corporation may in the lines and according to the levels shown on the deposited plans and sections continue the construction of and construct and complete the works next hereinafter described and may from time to time maintain renew reconstruct or discontinue the same and may for the purposes of the waterworks undertaking retain hold and use the same and any interest in the lands in this section described and already acquired by



the Corporation and appropriated to the purposes of the said A.D. 1911.  
works.

The works hereinbefore referred to are situate wholly in  
the county of Lancaster and are—

A reservoir (to be called “Revidge Reservoir”) having a  
superficial area of one hundred and eighty feet by one  
hundred and sixty feet or thereabouts and situate wholly  
in the township and county borough of Blackburn on  
land belonging to the Corporation on the north-west side  
of Revidge Road the centre of such reservoir being at a  
distance of one hundred and thirteen lineal yards or  
thereabouts from the centre of the said road measured  
from a point in the said road opposite the centre of the  
existing covered reservoir of the Corporation in Corpora-  
tion Park.

5. Subject to the provisions of this Act the Corporation Power to  
make works.  
may wholly in the county of Lancaster and in the lines and  
situation delineated on the deposited plans and described in the  
deposited book of reference make and maintain the following  
works shown on the deposited plans and sections (that is to  
say) :—

Work No. 1 A reservoir (to be called “Parsonage  
Reservoir”) to be situate in a valley on the south side of  
Feather Bed Road partly in the parish or township and  
urban district of Rishton and partly in the parish or  
township of Wilpshire and rural district of Blackburn  
and to be formed by an embankment six hundred and  
thirty-three yards or thereabouts in length to be con-  
structed along and across the said valley commencing in  
the parish or township of Wilpshire at a point one  
hundred and thirty-three yards or thereabouts east of the  
junction of the road leading from Stopping Hey to  
Ribchester with Feather Bed Road and twenty-three  
yards or thereabouts from the centre of Feather Bed  
Road measured in a southerly direction and running  
thence from east to west along the said valley parallel to  
Feather Bed Road for a length of two hundred and five  
yards or thereabouts thence running across the said valley  
in a straight line from north to south for a length of  
four hundred and twenty-eight yards or thereabouts and



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there terminating in the parish or township of Rishton and which reservoir will extend from the said embankment up the said valley and through the said parishes or townships of Rishton and Wilpshire for a distance of eight hundred and thirteen yards or thereabouts in an easterly direction measured in a straight line at right angles to so much of the said embankment as runs from north to south across the said valley :

Work No. 2 Conduit No. 1 An aqueduct conduit or line of pipes situate partly in the township and county borough of Blackburn and partly in the parish or township and urban district of Rishton and partly in the parish or township of Wilpshire and rural district of Blackburn commencing in the township and county borough of Blackburn by a junction with the Bowland main of the Corporation in the centre of Whalley New Road at the junction of Whalley New Road and Feather Bed Road and terminating in the said intended Parsonage Reservoir (Work No. 1) in the parish or township of Wilpshire at a point thirty yards or thereabouts measured in a south-easterly direction from the last-mentioned point :

Work No. 3 Conduit No. 2 An aqueduct conduit or line of pipes situate partly in the township and county borough of Blackburn and partly in the parish or township and urban district of Rishton commencing in the township and county borough of Blackburn at the junction of Whalley New Road and Whalley Range and terminating in the parish or township of Rishton in the said intended Parsonage Reservoir (Work No. 1) at a point sixty yards or thereabouts south of the centre of the stream forming the boundary between the parishes of Wilpshire and Rishton :

Work No. 4 Conduit No. 3 An aqueduct conduit or line of pipes situate wholly in the township and county borough of Blackburn commencing by a junction with the existing pumping main of the Corporation in Corporation Park at a point one hundred and ten feet or thereabouts measured in a south-westerly direction along the said main from the junction of the said main with the existing covered reservoir of the Corporation in the said park and terminating in the intended Revidge



Reservoir at a point six feet or thereabouts from the south-west corner of the last-mentioned reservoir : A.D. 1911.

Work No. 5 Conduit No. 4 An aqueduct conduit or line of pipes situate wholly in the township and county borough of Blackburn commencing in the intended Revidge Reservoir at a point on the west side thereof twenty-seven yards or thereabouts from the south-west corner of the last-mentioned reservoir and terminating in Revidge Road by a junction with the existing supply main of the Corporation at or near the junction of Whitehall Road with Revidge Road :

Work No. 6 A culvert situate wholly in the parish or township and urban district of Rishton commencing at a point on the stream forming the boundary between the said parishes or townships of Rishton and Wilpshire two hundred and ninety yards or thereabouts measured in an easterly direction from the centre of the road leading from Feather Bed Road to New Inn and Rishton and terminating at a point on the said stream forming the aforesaid boundary one hundred and forty-three yards or thereabouts west of the centre of the footpath leading from Stopping Hey to Middle Mickle Hey :

Work No. 7 (alteration of road and culvert) Alter and raise the level of the road leading from Feather Bed Road to New Inn and Rishton in the parish or township and urban district of Rishton and the parish or township of Wilpshire and rural district of Blackburn from a point one hundred and thirty-eight yards or thereabouts south-east from its junction with Feather Bed Road for a distance of two hundred and fifty yards or thereabouts measured in a south-easterly direction along the centre line of such first-mentioned road and alter and enlarge the existing culvert under the said road :

Work No. 8 A footpath situate partly in the parish or township of Wilpshire and rural district of Blackburn and partly in the parish or township and urban district of Rishton commencing in the parish or township of Wilpshire by a junction with Feather Bed Road on its south side at a point eighty-six yards or thereabouts west of the centre of the road leading from Stopping Hey to Ribchester and terminating in the parish or township of



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Rishton by a junction with the existing footpath leading from Stopping Hey to Middle Mickle Hey at a point two hundred and sixty yards or thereabouts measured along the centre line of such last-mentioned footpath in a southerly direction from the point where it crosses the boundary between the parishes or townships of Rishton and Wilpshire:

Work No. 9 A footpath situate partly in the parish or township of Wilpshire and rural district of Blackburn and partly in the parish or township and urban district of Rishton commencing in the parish or township of Wilpshire at a point on the east side of the road leading from Feather Bed Road to New Inn and Rishton one hundred and two yards or thereabouts in a south-easterly direction from the centre of Feather Bed Road and terminating in the parish or township of Rishton by a junction with the existing footpath leading from the said last-mentioned road to Whalley Old Road at a point thirty-three yards or thereabouts south-east from the point where the last-mentioned footpath crosses the boundary between the said townships of Wilpshire and Rishton.

In addition to the works hereby expressly authorised the Corporation may upon the lands by this Act authorised to be appropriated and acquired make and maintain all such cuts channels catchwaters tunnels adits pipes conduits culverts drains sluices byewashes shafts wells headings bores water towers overflows waste water channels gauges filter beds tanks drains basins valves banks walls bridges embankments piers approaches engines machinery and appliances as may be necessary or convenient in connection with or subsidiary to the before-mentioned works or any or either of them but nothing in this section shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

Power to  
deviate.

6. In the construction of the works authorised by this Act the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding in the case of



the said reservoirs three feet upwards and to any extent downwards and in the case of other works three feet upwards and ten feet downwards Provided as follows (that is to say):— A.D. 1911.

The Corporation shall not construct any embankment or wall of such reservoirs of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and three feet in addition:

Except for the purposes of crossing over a stream no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited plans.

7. Subject to the provisions of this Act the Corporation may collect impound take use divert and appropriate for the purposes of the works by this Act authorised water from the said pumping main of the Corporation in Corporation Park and from the said Bowland main of the Corporation. Power to take waters.

8. The Corporation may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the Corporation shall not create or permit a nuisance on any such lands, and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with the waterworks undertaking. Power to hold lands for protection of waterworks.

9. The Corporation shall not construct any works under this Act for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament. Limiting powers of Corporation to abstract water.

10. Subject to the provisions of this Act the Corporation may enter upon take and use compulsorily or by agreement and may appropriate and use for any of the purposes of this Act all or any of the lands shown on the deposited plans and described in the deposited book of reference which they may require for the purposes of the works by this Act authorised. Compulsory purchase of lands.



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Period for  
compulsory  
purchase of  
lands.

Period for  
completion  
of works.

Corporation  
may acquire  
easements  
only in cer-  
tain cases.

Power to  
take ease-  
ments &c. by  
agreement.

**11.** The powers of the Corporation for the compulsory purchase of lands for the purposes of the works authorised by this Act shall cease after the expiration of three years from the passing of this Act.

**12.** If the works authorised by this Act are not completed within ten years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof and otherwise in relation thereto shall cease except as to so much thereof respectively as shall be then completed. Provided that the Corporation may extend enlarge alter reconstruct renew or remove any of their works and plant and in the case of the conduits authorised by this Act lay down additional lines of pipes as and when occasion may require.

**13.—(1)** The Corporation may in lieu of acquiring any lands for the purposes of the works authorised by this Act where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Corporation have acquired easements only under the provisions of this section the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not been passed.

Provided always that nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

**14.** Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or



privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. A.D. 1911.

**15.** The Corporation may from time to time for any of the purposes of the waterworks undertaking purchase by agreement any lands not exceeding twenty acres in addition to the lands which they are authorised to take by compulsion but the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands or use any of such lands for any buildings except offices or dwellings for persons in their employ and such buildings and works which may be incident to or connected with their waterworks undertaking. Power to take additional lands by agreement.

**16.** If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting for the county of Lancaster for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said county and a duplicate thereof shall also be deposited with the clerks of the councils of the borough districts or parishes in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerk of the peace and clerks of councils respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate. Correction of errors &c. in deposited plans and book of reference.

**17.** The Corporation may (with the consent of the road authority where the Corporation are not the road authority) during the execution and for the purposes of any work authorised Temporary stoppage of streets.



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A.D. 1911. by this Act stop up any street and prevent all persons other than those bonâ fide proceeding to or returning from any house in the street from passing along and using the same for any reasonable time and the Corporation shall provide reasonable access for all persons so bonâ fide proceeding to or returning from any such house.

New works  
to be part of  
waterworks  
undertaking.

**18.** The works by this Act authorised to be constructed shall for all purposes whatsoever form part of the waterworks undertaking and subject to the provisions of this Act the Corporation may exercise and enjoy in respect thereof and of the water collected therein and delivered therefrom all and the like powers rights privileges and authorities as they are authorised to exercise and enjoy with respect to the waterworks undertaking.

Temporary  
discharge of  
water into  
streams.

**19.** For the purpose of constructing enlarging extending repairing cleansing or examining any aqueduct conduit or other work authorised by this Act the Corporation may cause the water in any such aqueduct conduit or other work to be temporarily diverted into any available stream or watercourse.

In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of such compensation to be settled in the case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

For protec-  
tion of Lan-  
cashire and  
Yorkshire  
Railway  
Company.

**20.** The following provisions for the protection of the Lancashire and Yorkshire Railway Company (in this section referred to as "the company") shall notwithstanding anything in this Act contained apply and have effect except in so far as may be otherwise agreed between the company and the Corporation:—

- (1) The construction of Work No. 3 (Conduit No. 2) by this Act authorised and the works connected therewith under or adjoining any railways or other property of the company and any works of maintenance repair and renewal of such works (all of which works are hereinafter referred to as "the said waterworks") shall be done under the superintendence and to the reasonable satisfaction of the principal



engineer of the company and according to plans sections and specifications to be submitted to and reasonably approved by him before any such works are commenced or in the event of any dispute or difference between such engineer and the engineer of the Corporation then in such manner as shall be settled by arbitration as hereinafter provided : A.D. 1911.

- (2) The said waterworks shall be executed by and in all things at the expense of the Corporation and in such manner as not to cause any injury to the railways or other property of the company or interruption to the passage or conduct of the traffic thereon and if any such injury or interruption shall arise the Corporation shall make compensation to the company in respect thereof :
- (3) The Corporation shall bear and on demand pay to the company the reasonable expense of any temporary works and of the employment by the company of a sufficient number of inspectors watchmen and flagmen to be appointed by the company for watching their railway property and works with reference to and during the execution of the said waterworks under their railway :
- (4) Notwithstanding anything in this Act contained the Corporation shall be responsible for and make good to the company all costs losses damages or expenses which may be occasioned to them or to any of their railways works or property or to the traffic thereon by reason or in consequence of the execution or failure of the said waterworks or by any act or omission of the Corporation or any persons in their employment or their contractors agents or others and the Corporation shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such execution or failure and of such act or omission :
- (5) If any difference shall arise between the Corporation and the company or their respective engineers touching the matters referred to in this section or anything to be done or not to be done thereunder such difference shall be referred to and determined by an engineer



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to be nominated by such respective engineers or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of the Corporation or the company and the provisions of the Arbitration Act 1889 shall apply to any such reference.

Extension  
of time for  
construction  
of Brennand  
and Whiten-  
dale Reser-  
voirs.

**21.** The time limited by section 83 of the Act of 1898 for the construction of the Brennand Reservoir and the Whitendale Reservoir and the other works authorised by the Act of 1877 is hereby extended. Provided that if the said reservoirs and works are not completed within twenty years from the passing of this Act the powers granted by the Act of 1877 to the Corporation for making the said respective reservoirs and works or otherwise in relation thereto shall cease to be exercised except as to so much thereof as is then completed. Provided that subject to the provisions of the Act of 1877 and of this Act the Corporation may from time to time alter enlarge extend or remove their tanks gauges gauge basins engines machinery wells mains pipes and other works or improve their water supply in such way or manner as occasion requires.

Stopping up  
footpaths  
and vesting  
sites in Cor-  
poration.

**22.** Upon the completion of Works Nos. 8 and 9 by this Act authorised the Corporation may stop up and extinguish all rights of way over the respective portions of the existing footpaths leading respectively from Stopping Hey to Middle Mickle Hey and from Feather Bed Road to Whalley Old Road shown upon the deposited plans as intended to be diverted and may appropriate to and for their own use and as their own property the site of so much of each of the said respective existing footpaths so diverted or stopped up as far as the same is bounded on both sides by lands of the Corporation:

Provided that the Corporation shall not stop up such portions of the existing footpaths until they have completed and opened to the public Works Nos. 8 and 9 authorised by this Act in substitution for such portions of the existing footpaths and two justices shall have certified that the said Works Nos. 8 and 9 have been completed to their satisfaction and are open for public use.

Before applying to the justices for their certificate the Corporation shall give to the road authority of the district in which



the existing footpath is situate seven days' notice in writing of their intention to apply for the same. A.D. 1911.

Any private rights of way extinguished by virtue of this section shall be exerciseable over such portions of the said Works Nos. 8 and 9 as are constructed in substitution for the respective portions of the existing footpaths stopped up under the powers of this section.

**23.** Upon the completion of Work No. 6 by this Act authorised the Corporation may divert the waters flowing through the existing stream forming the boundary between the parishes or townships of Wilpshire and Rishton into and through the culvert (Work No. 6) by this Act authorised and may stop up and discontinue so much of the said existing stream as lies between the points of commencement and termination of the said culvert (Work No. 6) and may appropriate to and for their own use and as their own property the bed site and soil of so much of the said existing stream so stopped up.

Diversion of stream and vesting of soil and bed in Corporation.

**24.** The Corporation may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of any of their waterworks with reference to the execution by the Corporation or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters which they are empowered to divert collect and appropriate flowing to upon or from such lands directly or derivatively into such works.

Power to agree as to drainage of lands &c.

**25.** The Corporation on selling any lands acquired for or in connection with the waterworks undertaking and not required for that purpose may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make such sale subject to such reservations accordingly and may also make such sale subject to such other reservations special conditions restrictions and provisions with regard to the use of water exercise of obnoxious trades or discharge or deposit of manure sewage or other impure matter or otherwise as they may think fit.

On sale of spare lands Corporation may reserve water rights &c.

**26.** The Corporation may from time to time in addition to any moneys they are now authorised to borrow borrow at interest on the following securities and for the following purposes such moneys as they may from time to time think requisite for those

Power to borrow.



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A.D. 1911. — respective purposes not exceeding the following sums each of such sums or such part thereof respectively as may from time to time be borrowed to be repaid from time to time within the periods for which the same or any part thereof shall have been borrowed set opposite the same respectively in this section (that is to say):—

(1) On the security of the waterworks revenue and the general district fund and general district rate—

For the purchase of lands for and construction of works by this Act authorised—

Seventy-five thousand five hundred pounds fifty years from the date or dates of borrowing:

(2) On the security of the waterworks revenue—

For the costs of this Act—

Such sum as is necessary for the purpose five years from the passing of this Act:

And with the consent of the Local Government Board such further sums as the Corporation may require for any of the purposes of this Act and any moneys borrowed with the sanction of the Local Government Board shall be charged on the same securities respectively as those on which moneys borrowed for similar purposes under this Act are chargeable and shall be repaid within such respective periods not exceeding sixty years as the Board may allow.

Certain provisions of Act of 1898 to apply.

**27.** The provisions contained in the following sections of the Act of 1898 (namely):—

Section 98 (Sinking fund for moneys borrowed for waterworks and hereafter to be borrowed);

Section 99 (Provisions as to increase and reduction of payments to sinking fund under preceding section);

Section 100 (Defining “prescribed period”);

Section 101 (Local Loans Act 1875 to be available);

Section 102 (Certain regulations of Public Health Act as to borrowing not to apply);

Section 103 (Power to reborrow);

Section 104 (Mode of raising money);

Section 105 (Sections 236-238 of Public Health Act to be available);



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- Section 106 (Application of borrowed moneys); A.D. 1911.  
Section 107 (Appointment of receiver);  
Section 108 (Annual return to Local Government Board);  
Section 109 (Protection of lender from inquiry);  
Section 111 (Inquiries by Local Government Board);  
Section 112 (As to investment of sinking &c. funds);  
Section 117 (Corporation not to regard trusts);

shall subject to the provisions of this Act extend and apply mutatis mutandis to and in relation to all moneys borrowed under the powers of this Act.

**28.** Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown rights.

**29.** The costs charges and expenses preliminary to and of Costs of Act.  
and incidental to the preparing and applying for and the obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation in the first instance out of the water-works revenue but ultimately if the Corporation so determine out of moneys to be borrowed under the powers of this Act.

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